



Appeal Decision

by Chris Mayes CMLI

an Inspector appointed by the Secretary of State

Decision date: 9 September 2026

Appeal Ref: 6008534

356 Prescott Road, Old Swan, Liverpool L13 3AP

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Mark King of Kings of Liverpool against the decision of Liverpool City Council.
 - The application reference is 25F/1573.
 - The development proposed is 'demolition of existing car showroom and erection of new four storey building consisting of car showroom and 9no. (C3) apartments'.
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. Since the appeal was submitted, a revised National Planning Policy Framework (the Framework) has been published. The parties were given the opportunity to comment on the implications of the revised Framework, and their responses have been taken into account. I have considered the appeal against the policy context now in place, including the revised Framework.
3. An executed and certified planning obligation dated 21 April 2026 has been submitted during the appeal, which makes provision for financial contributions towards planting and maintenance of street trees. I have had regard to the obligation in determining the appeal.

Main Issues

4. The main issues are the effect of the proposed development on:
 - the character and appearance of the area; and
 - the living conditions of the occupants of 1 Barrymore Road and 2 Aviemore Road, with particular reference to outlook, privacy and noise and disturbance.

Reasons

Character and Appearance

5. The appeal site occupies a prominent corner position at the junction of Prescott Road and Barrymore Road. As a result, it is experienced in views along Prescott Road and from Barrymore Road, with both aspects making a significant contribution to the surrounding townscape. While the area contains a mixture of commercial and residential uses, a consistent pattern of development is evident. Buildings fronting Prescott Road commonly comprise commercial premises at

ground floor with residential or other accommodation above, while the adjoining side streets are characterised by modest two-storey terraced housing. Although the commercial buildings generally have greater floor-to-floor heights than the surrounding houses, resulting in larger overall structures, they nonetheless predominantly retain two-storey proportions and a broadly consistent and similar roofscape.

6. There are exceptions to that pattern. The former church hall adjoining the appeal site is notably taller than the surrounding terraced housing, while the former Stanley Arms public house and the Liverpool Meat and Fish Market provide larger and more prominent buildings within the locality. However, these buildings derive their visual presence from specific architectural characteristics and sit comfortably within the wider streetscene. The former church hall remains proportioned as a two-storey building despite its greater height and appears particularly prominent because its gable elevation addresses the street. Similarly, while the former Stanley Arms rises to three storeys and the market building incorporates an eight-storey tower, neither establishes a prevailing built form. Rather, they comprise isolated features within a broader townscape characterised by buildings of modest scale and pitched roofs.
7. The prevalence of pitched roofs is an important component of local character. Equally significant is the comparatively open character around the appeal site itself. The former petrol filling station, located on the opposite side of Barrymore Road, and the open delivery and parking areas associated with the market building create a degree of spaciousness within an otherwise largely continuous frontage. This openness increases the visibility of the appeal site from a wider range of public viewpoints than many neighbouring plots.
8. The proposal comprises a four-storey mixed-use building containing a car showroom at ground floor level and residential accommodation above. While it would not constitute a tall building for the purposes of Appendix 3 of the Liverpool Local Plan 2013-2033 (January 2022) (the LP), that is not the basis upon which I have determined this appeal. Rather, I have assessed the proposal against the relevant development plan policies concerning design and local character, having particular regard to its form, scale, massing, proportions and roofscape. It is on that basis that I have reached the findings set out below.
9. Against that backdrop, the proposed building would not simply add height but would introduce a markedly different form of development. While the proposed roofline would sit marginally below the ridge of the adjoining former church hall, subservience is not determined by overall height alone. Matters of scale, massing, proportion and architectural composition are also relevant. In this case, the limited difference in height would do little to reduce the proposal's substantial visual presence.
10. As outlined above, a consistent architectural order is therefore evident, whereby a relatively small number of floors occupy comparatively tall building envelopes. By contrast, the proposal would compress four storeys into a broadly comparable overall height. This would produce a noticeably different rhythm of openings, floor levels and proportions from that found within the surrounding townscape. Consequently, the proposal would not simply mirror the scale of neighbouring buildings but would introduce a distinctly different form of development which would appear at odds with the prevailing character of the area.

11. The effect would be compounded by the recessed flat-roofed upper storey, which would not only contrast with the predominantly pitched roofscape that characterises the area but would also add appreciable visual bulk at the uppermost part of the building. Unlike the pitched roofs that predominate within the surrounding townscape, which reduce apparent mass as buildings rise, the proposed form would maintain substantial built volume at roof level. This would reinforce the building's incongruous appearance and further emphasise its departure from the prevailing character of the area.
12. This harm would be readily apparent. Owing to the site's prominent corner position and the comparatively open character created by the former petrol filling station opposite and the open areas associated with the market building, the development would be visible from a wide range of public viewpoints. The incongruous form of the building would therefore be experienced not only in direct comparison with the adjoining former church hall, but as a prominent element within the wider streetscene.
13. I acknowledge that Policy L2 of the Framework supports the creation of homes above commercial premises and recognises that larger buildings may, in some circumstances, be appropriate at street corners. However, that support is not unqualified. The policy also requires such development to be consistent with the overall street scene and, where building upwards is proposed, to avoid substantial harm to the character of a building and its surroundings. For the reasons set out above, I am not persuaded that the proposal would satisfy those requirements.
14. Although the site marks a transition between the more commercial frontage of Prescott Road and the adjoining residential streets, I am not persuaded that these operate as wholly distinct character areas for the purposes of assessing the proposal. The narrow accessway between the appeal site and 1 Barrymore Road (No.1) provides only a limited degree of physical separation. Consequently, the proposed building would be experienced in the same visual context as the adjoining terraced housing on Barrymore Road, particularly in views from the south and east, and its design should therefore respond appropriately to both aspects of its setting.
15. I acknowledge that the existing building is of limited architectural merit and makes only a modest contribution to the streetscene. Nevertheless, the shortcomings of the existing building do not diminish the need for replacement development to respond appropriately to its surroundings. While redevelopment of the site has the potential to enhance the character and appearance of the area, for the reasons set out above I am not persuaded that the proposal would achieve that outcome.
16. For these reasons, I find that the proposal would fail to demonstrate that adequate regard has been had to the prevailing form, scale, proportions, building heights, rooflines and roofscape of the area. Nor would its height, massing, architectural form and appearance represent an appropriate response to its context or reflect the established characteristics and architectural structure of the surrounding townscape. Rather than maintaining or enhancing the character and appearance of the local environment, the proposal would introduce an incongruous and visually intrusive form of development. Accordingly, I conclude that the proposal would conflict with Policies UD1, UD2, UD5 and H13 of the LP, which, among other things, require development to respond positively to local character and distinctiveness, be appropriate to its context in terms of form, height, scale and massing, demonstrate a clear relationship with the characteristics of the area, and

maintain or enhance the overall character and appearance of the local environment.

Living Conditions

17. The proposal would introduce a substantially greater volume of built form than presently exists on the site close to the rear yards of No.1 and 2 Aviemore Road (No.2). While I acknowledge that part of the rear elevation would step down to accommodate the first-floor communal terrace area of the proposed development, the enclosing wall to that terrace would nevertheless be materially higher than the existing building and substantial sections of the development would extend to significantly greater heights.
18. Consequently, the development would appear dominant and imposing when experienced from the rear yards of those properties. The combination of its scale, height and proximity would result in a pronounced sense of enclosure and materially diminish the openness currently experienced and outlook presently available from those spaces.
19. Turning to privacy, the relationship is materially different. On the basis of the plans before me, the first-floor bedroom window in the proposed development facing the neighbouring rear yards would be largely screened from direct views by the enclosing wall to the terrace area and would therefore afford only limited opportunities for overlooking. Greater opportunities for views would arise from the second- and third-floor bedroom windows and, to a lesser extent, from use of the terrace area itself. Nevertheless, no habitable room windows of neighbouring properties would be directly overlooked.
20. The proposal would increase opportunities for views into the rear yard areas of neighbouring properties. Although the rear yards of No.1 and No.2 are modest in size, their limited dimensions do not preclude their use as private outdoor amenity spaces nor diminish their importance to the occupants of those properties. This is particularly so in a dense urban environment where opportunities for private outdoor recreation may be more limited. Nevertheless, a degree of mutual overlooking of outdoor amenity spaces is an established characteristic of dense urban environments such as this. Consequently, while I have found that a degree of overlooking would occur, I find that this would not be so significant or alien as to be detrimental to the privacy and enjoyment of those spaces for the neighbouring occupants.
21. Equally, I attach some significance to the fact that the proposed communal terrace would be relatively modest in size. While it would provide an opportunity for outdoor amenity space where none presently exists, its scale would naturally limit the intensity of activity likely to occur. Accordingly, while the proposal would introduce some outdoor residential activity at first-floor level, there is little substantive evidence to indicate that it would generate noise and disturbance materially greater than that ordinarily associated with residential occupation in an urban environment.
22. Drawing these matters together, I find that the proposal would result in an unacceptable loss of outlook for the occupants of No.1 and No.2 by reason of its height, scale, massing and proximity, which would create a dominant and overbearing form of development when experienced from their rear yards. While the proposal would also give rise to some additional overlooking of those private outdoor spaces, I have found that effect to be limited within the context of the

surrounding urban area. Similarly, I am not persuaded that the communal terrace would result in noise and disturbance of a degree materially greater than would ordinarily be expected from residential occupation.

23. Nevertheless, the identified harm to outlook and resulting impact on the living conditions of neighbouring occupants is sufficient for me to find that the proposal would fail adequately to protect residential amenity or maintain acceptable living standards for neighbouring occupants. Accordingly, I conclude that the proposal would conflict with Policies H7 and H13 of the LP, which seek, among other things, to protect the living conditions of existing residents and ensure that levels of privacy and amenity are maintained. The proposal would also conflict with Policy UD2 of the LP, which requires development to provide a good outlook for existing occupants, and Policy UD5 of the LP, which requires overlooking and interface issues affecting neighbouring plots to have been appropriately addressed through the design of new buildings. While I have found that the proposal would not give rise to unacceptable harm in respect of noise and disturbance, and therefore no conflict with Policy R1 of the LP, the harmful effect on outlook is sufficient in this case to render the proposal unacceptable.

Other Matters

24. An executed planning obligation has been submitted during the appeal which makes provision for off-site tree planting and maintenance. The appellant also invites me to consider whether the contribution sought by the Council satisfies the statutory tests for planning obligations, having regard to previous appeal decisions. However, in light of my conclusions on the main issues, the acceptability or otherwise of the obligation would not alter the outcome of the appeal. Consequently, I have not found it necessary to reach a definitive conclusion on that matter.
25. I have had regard to the proposed use of good quality materials. However, this is a normal expectation of acceptable development rather than a benefit and does not weigh either for or against the proposal.

Planning Balance

26. The proposal would redevelop a previously developed and underutilised site in a sustainable location. It would provide 9 additional dwellings, make efficient use of land and utilise space above commercial premises. These are matters to which the Framework affords support, including through Policies HO7 and L2. Given the modest scale of the proposal, I attach moderate weight to these benefits.
27. The proposal would also support the continued operation of the existing business and secure off-site tree planting. However, the evidence before me does not demonstrate that the development is necessary to sustain the business, and the planting proposed would be limited in extent. Consequently, I attach only limited weight to these benefits.
28. Against these benefits, I have found that the proposal would cause unacceptable harm to the character and appearance of the area and unacceptable harm to the living standards of neighbouring occupants. These adverse effects conflict with the development plan taken as a whole as well as the Framework. I therefore afford significant weight to the harms identified.

29. Taking all matters into account, I find that the benefits of the proposal would be substantially outweighed by its adverse effects when assessed against the national decision-making policies in the Framework.

Conclusion

30. The proposal conflicts with the development plan and the material considerations, including the Framework, do not indicate that the appeal should be determined other than in accordance with it. Accordingly, and for the reasons given above, I conclude that the appeal should be dismissed.

Chris Mayes

INSPECTOR